

Amit Pratap Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 5 August 2021 · Writ-C No. 11318 of 2021 · **Writ disposed; petitioner relegated to Clause 6.5 EE representation.**

HEADNOTE

A writ challenging two electricity bills was disposed of without examining the bills on merits. Because the grievance required a factual enquiry, the Division Bench held that the appropriate course was a representation to the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005. If filed within three weeks with a copy of the order, the Executive Engineer was to decide expeditiously in accordance with law, preferably within one month, under intimation to the petitioner.

FACTUAL SUMMARY

Amit Pratap Singh invoked the Allahabad High Court's writ jurisdiction against the State of Uttar Pradesh and officers of Paschimanchal Vidyut Vitran Nigam Limited, Vidyut Khand I, Bulandshahr, challenging electricity bills dated 7 July 2020 and 5 October 2020 issued by respondent no. 2. The petition was listed repeatedly in June and July 2021 while counsel for the distribution licensee entered appearance and was directed to complete instructions. On 5 August 2021 the Division Bench of Sunita Agarwal and Sadhna Rani (Thakur) JJ. heard the writ for disposal.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bill — alternate remedy to Executive Engineer

HOLDING

Where a writ challenges electricity bills and the grievance requires a factual enquiry, the consumer is to approach the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005 rather than have the High Court decide the bills. If a representation is filed within three weeks with a copy of the order, the Executive Engineer must decide expeditiously in accordance with law, preferably within one month, under intimation to the consumer. The writ is disposed of on that direction. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench refused to examine the two challenged bills in writ and sent the consumer to Clause 6.5 before the Executive Engineer. ¶ 1

billing-dispute-question-of-fact-executive-engineer-clause-6.5 The Court treated the bill grievance as requiring a factual enquiry, which it held was for the Executive Engineer under Clause 6.5. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Challenge to bills dated 7 July 2020 and 5 October 2020 was left to the Clause 6.5 statutory representation, to be decided preferably within one month if filed within three weeks. ¶ 1

6.5-representation-as-appropriate-remedy The Court described a Clause 6.5 representation to the Executive Engineer, Paschimanchal Vidyut Vitran Nigam Ltd., Vidyut Khand I, Bulandshahr, as the appropriate course of action. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILLS DATED 07.07.2020 AND 05.10.2020

Left to the Executive Engineer under Clause 6.5; the Court made no finding on the bills. ¶ 1

